

Opinion of the Court

only domestic application”). We presume that statutes do not apply extraterritorially to “ensure that the Judiciary does not erroneously adopt an interpretation of U. S. law that carries foreign policy consequences not clearly intended by the political branches.” *Kiobel v. Royal Dutch Petroleum Co.*, 569 U. S. 108, 116 (2013); see also *EEOC v. Arabian American Oil Co.*, 499 U. S. 244, 248 (1991).

If this danger provides a reason for caution when Congress has enacted a statute but has not provided expressly whether it applies abroad, we have even greater reason for hesitation in deciding whether to extend a judge-made cause of action beyond our borders. “[T]he danger of unwarranted judicial interference in the conduct of foreign policy is magnified” where “the question is not what Congress has done but instead what courts may do.” *Kiobel*, 569 U. S., at 116. Where Congress has not spoken at all, the likelihood of impinging on its foreign affairs authority is especially acute.

Congress’s treatment of ordinary tort claims against federal officers is also revealing. As petitioners and their *amici* stress, the traditional way in which civil litigation addressed abusive conduct by federal officers was by subjecting them to liability for common-law torts. See Brief for Petitioners 10–17. For many years, such claims could be raised in state or federal court,⁸ and this Court occasionally considered tort suits against federal officers for extraterritorial injuries. See, e. g., *Mitchell v. Harmony*, 13 How. 115 (1852) (affirming award in trespass suit brought by U. S. citizen against U. S. Army officer who seized personal property in Mexico during the Mexican-American war). After *Erie*, federal common-law claims were out, but we recognized the continuing viability of state-law tort suits against federal officials as recently as *Westfall v. Erwin*, 484 U. S. 292 (1988).

⁸State-law claims could be asserted in federal court if the parties’ citizenship was diverse, and federal common-law claims could be raised until *Erie R. Co. v. Tompkins*, 304 U. S. 64 (1938).